



ALBERTA

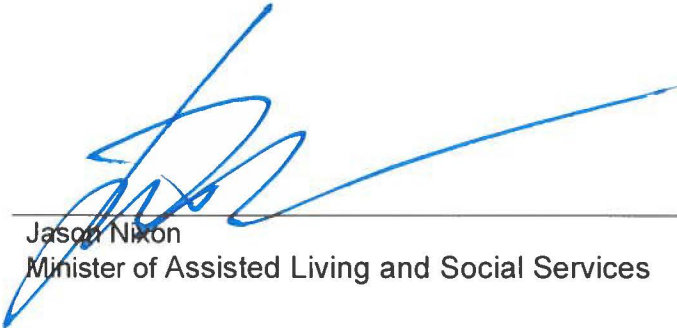
ASSISTED LIVING AND SOCIAL SERVICES
Office of the Minister

**Ministerial Order
No. 2026-001**

WHEREAS, pursuant to section 12(2) of the *Assured Income for the Severely Handicapped Act* (the Act), the Minister may make regulations.

THEREFORE, I, JASON NIXON, Minister of Assisted Living and Social Services, pursuant to section 12(2) of the Act, do hereby make the Applications and Appeals (Ministerial) Amendment Regulation as set out in the attached Appendix.

DATED this 27 day of April, 2026.



Jason Nixon
Minister of Assisted Living and Social Services

FILED UNDER
THE REGULATIONS ACT
as ALBERTA REGULATION 87/2026
ON April 29 2026


REGISTRAR OF REGULATIONS

APPENDIX

Assured Income for the Severely Handicapped Act

APPLICATIONS AND APPEALS (MINISTERIAL) AMENDMENT REGULATION

1 The *Applications and Appeals (Ministerial) Regulation* (AR 89/2007) is amended by this Regulation.

2 Section 2(2) is repealed and the following is substituted:

(2) In the case of an application for reinstatement of a benefit, a director may exempt an applicant from the application of section 3(2)(a)(i) or 4(2)(a)(i), as applicable, of the *Assured Income for the Severely Handicapped General Regulation* if, within the previous 2 years, the applicant ceased to meet an eligibility requirement to receive the benefit other than the requirement to have a severe disability that permanently prevents employment or a severe disability that substantially impedes employment, as applicable.

3 Section 4 is amended

- (a) by striking out “10(2)” and substituting “10.1(1)”;
- (b) in clauses (a) and (f) by striking out “his or her” and substituting “the appellant’s”.

4 Section 6 is repealed and the following is substituted:

Decisions exempt from appeal

6 The following decisions of a director are exempt from appeal:

- (a) a decision under section 7(4) of the Act respecting whether to exempt a person from the requirement to repay an amount or value of a benefit;
- (b) a decision under section 9(4) of the Act to take action to collect a debt due to the Government;
- (c) a decision under section 2(4) of the *Assured Income for the Severely Handicapped General Regulation* respecting

whether to exempt a person from the application of section 2(2)(d) of that Regulation;

- (d) a decision under section 2(8) of the *Assured Income for the Severely Handicapped General Regulation* to require repayment of a personal benefit;
- (e) a decision under section 3(1)(a) of the *Assured Income for the Severely Handicapped General Regulation* respecting whether a person has a severe disability that permanently prevents employment, unless the Minister has specified the decision under section 10(2)(e) of the Act as a type of decision respecting which an appeal panel may hear appeals;
- (f) a decision under section 8(5) of the *Assured Income for the Severely Handicapped General Regulation* respecting whether an applicant or client refuses a transfer to a continuing care home or a discharge from the hospital to the community;
- (g) a decision under section 13(6) of the *Assured Income for the Severely Handicapped General Regulation* respecting whether to exempt a person from the application of section 13(5) of that Regulation;
- (h) a decision under section 15(1)(b)(i) of the *Assured Income for the Severely Handicapped General Regulation* to refuse, suspend, vary or discontinue a benefit;
- (i) a decision under section 20(2) of the *Assured Income for the Severely Handicapped General Regulation* to deduct an amount or value of a benefit that the client must repay under section 7 of the Act or a debt due to the Government by the client;
- (j) a decision under section 6(5) of Schedule 1 to the *Assured Income for the Severely Handicapped General Regulation* to apply income to, or prorate income over, a different or longer period;
- (k) a decision under section 7(1)(a) or (b) of Schedule 3 to the *Assured Income for the Severely Handicapped General Regulation* to provide a personal benefit.

5 Section 11 is amended by striking out “April 30, 2027” and substituting “April 30, 2030”.

6 This Regulation comes into force on the coming into force of section 6(16) of the *Financial Statutes Amendment Act, 2025 (No. 2)*.